

§ 214.3

47 CFR Ch. II (10–1–05 Edition)

§ 214.3 Assumptions.

When the provisions of this part become operative, Presidential emergency authority, including Executive Order 12656, 12472, 12046 (3 CFR, 1966–1970 Comp., p. 820), and other emergency plans regarding the allocation and use of national resources will be in effect. During an attack, and in a postattack period, the Director, OSTP, will have authority to make new or revised assignments of radio frequencies in accordance with authority delegated by the President.

§ 214.4 Planned actions.

(a) Whenever it is determined necessary to exercise, in whole or in part, the President's emergency authority over telecommunications, the Director, OSTP, will exercise that authority as specified in Executive Order 12472 (49 FR 13471; 3 CFR, 1984 Comp., p. 193).

(b) In this connection, and concurrently with the war or national emergency proclamation by the President, the Director will:

(1) Authorize the continuance of all frequency authorizations issued by the National Telecommunications and Information Administration (NTIA) and the Federal Communications Commission (FCC), except as they may otherwise be modified or revoked by the Director, OSTP, in the national interest;

(2) Redelegate to the Secretary of Defense the authority necessary to control the use of the radio spectrum in areas of active combat, where such control is necessary to the support of U.S. military operations;

(3) Close all non-government radio stations in the international broadcasting service as defined in the FCC rules and regulations, except those carrying or scheduled to carry U.S. Government-controlled radio broadcasts.

§ 214.5 Responsibilities.

(a) The Director, OSTP, will issue such policy guidance, rules, regulations, procedures, and directives as may be necessary to assure effective frequency usage during wartime emergency conditions.

(b) The FCC, in coordination with NTIA, shall issue appropriate rules, regulations, orders, and instructions and take such other actions not incon-

sistent with the actions of the Director, OSTP, and the NTIA Emergency Readiness Plan for Use of the Radio Spectrum as may be necessary to ensure the effective use of those portions of the radio spectrum shared by Government and non-government users.

(c) The FCC shall assist the Director in the preparation of emergency plans pursuant to section 3(h)(3) of Executive Order 12472.

(d) Each Federal Government agency concerned shall develop and be prepared to implement its own plans, and shall make necessary preemergency arrangements with non-government entities for the provision of desired facilities or services, all subject to the guidance and control of the Director.

§ 214.6 Postattack procedures and actions.

(a) The frequency management staff supporting the Director, OSTP, comprised of predesignated personnel from the frequency management staffs of the government user agencies, NTIA and the FCC, will have proceeded to the OSTP relocation site in accordance with alerting orders in force.

(b) Government agencies having need for new radio frequency assignments or for modification of existing assignments involving a change in the frequency usage pattern shall, unless otherwise provided, submit applications therefor to the Director, OSTP, by whatever means of communication are available and appropriate, together with a statement of any preapplication coordination accomplished. The Director, OSTP, will review such applications accomplish the necessary additional coordination insofar as practicable, consider all pertinent views and comments, and grant or deny, as he shall determine, the assignment of such frequencies. All concerned will be informed promptly of his decisions.

(c) Non-Government entities having need for new radio frequency assignments or for modifications of existing assignments will continue to submit applications therefor to the FCC, or in accordance with FCC instructions. Such applications shall be coordinated with the Director, OSTP, and granted subject to the approval of the Director, OSTP, or his delegate.

Measurement of the absolute energy and energy spread of the ESRF electron beam using undulator radiation

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Two simple methods of characterization of the energy and energy spread of the electron beam have been developed at the ESRF. Both are based on the analysis of the x-ray spectrum from an undulator.

The first allows the absolute energy of the electrons to be determined. It is based on the dependence between the harmonics' wavelengths and the electron beam energy. The x-ray beam is monochromatized at 21 keV by a silicon crystal in backscattering geometry. By adjusting the magnetic gap, one makes the undulator third harmonic coincide with the energy selected by the crystal. The electron beam energy is deduced from the gap value and the knowledge of the undulator period and photon wavelength. The main errors come from the uncertainties regarding the undulator parameters (magnetic field and period). The effects of the uncertainties in the magnetic field are minimized by working at low field ($K=0.37$). The accuracy currently obtained is better than 10^{-3} .

The energy spread measurement is performed by a second method which is based on the change in the shape of the harmonics' profile with energy spread. It is deduced from the measured ratio between the height of the seventh harmonic peak at 29 keV and that of the secondary maximum. The measured low current energy spread is $1.1 \times 10^{-3} \pm 20\%$. It increases with the single bunch current due to turbulent bunch lengthening.

BARROW STATEMENT ON AIG BONUSES

Washington, DC - Congressman John Barrow (GA-12) released the following statement today:

"The more we learn about failed executives of companies like AIG making off with taxpayer money that's supposed to save their companies the angrier I get. This is exactly why I didn't vote for the bailout last fall, and why I think the only money we should be spending should go to keeping families in their homes and putting businesses back to work. We need to crack down on greedy execs who line their pockets with taxpayer money."

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